

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1203 of 2006

Bibek Chandra Halder and others

----- Plaintiff-appellant-petitioners

=Versus=

Krishna Kanta Halder being dead his legal heirs :-

1(a) Khitish Chandra Halder and others

----- Defendant-respondent-opposite-parties

Mr. Md. Abdul Awal with

Mrs. Chowdhury Nasima, Advocates

----- For the petitioners.

Mr. Abdul Quayum with

Mr. Selim Reza Chowdhury and

Mr. Ali Reza, Advocates

----- For the opposite-party Nos.5,30,32 and 45

Heard on 05.03.2017,07.3.2017,09.03.2017 and

Judgment on 23.03.2017

At the instance of the present plaintiff-appellant-petitioners, Bibek Chandra Halder and others, this Rule has been issued calling upon the opposite-party Nos.10-12,30-32, 40,42-44,46,48 to 55 to show cause as to why the impugned judgment and decree dated 07.04.2005 passed by the learned Joint District Judge, 1st Court, Jhalakati in Title Appeal No.239 of 1994 affirming those dated 30.10.2004 passed by the learned Assistant Judge, Rajapur in T.S. No.58 of 1994 dismissing the Suit should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present petitioners as the plaintiffs filed the Title Suit No.58 of 1994 in the Court of the learned Assistant Judge, Rajapur, District-Jhalakati for setting aside a decree passed in Title Suit No.212 of 1975 described in the schedule 'ka' as illegal, forged and also for declaration of title regarding the land described in schedule 'kha' of the plaint.

The plaint case in short is that one Nityananda Halder became an owner and possessor of the land measuring 3 decimals which has been included in the plaint of the Title Suit No.212 of 1975 filed in the 6th Munsif, District the then Barisal. The said Nityananda became also an owner of total land measuring 1.99 acres including the aforementioned 3 decimals through an agreement for sale (bainapatra) dated 22.04.1970 executed by Ranimohon, Ruhani Bala and Chandra Kanta Jomaddar on receiving Tk.5,000/- out of total Tk.6,000/- as the consideration money. The said agreement further contains that the executant shall execute and register a sale deed in favour of the said Nityananda Halder. The present plaintiff-petitioners became the legal heirs after the death of said Nityananda. Out of aforementioned 1.99 acres the land measuring .51½ acres in Plot Nos.397 and 358 appertaining to S.A. khatian No.178 and 108 was listed as the vested property under the V.P Case No.102 of 1979, but said Nityananda took lease the said land on 11.11.1980 and has been possessing by constructing dwelling house. The said Title Suit No.212 of

1975 was filed without making some of the owners of the said land measuring 1.99, but the plaintiffs and some of the defendants in the said suit entered into a compromise agreement (solenama) dated 03.06.1975 was not acted upon because of practicing fraud, therefore, the solenama was a forged document. The said Title Suit No.212 of 1975 was decreed on compromise on 03.06.1975 by practicing fraud upon the Court. The present plaintiff-petitioners were not aware about the said decree, however, they came to know about the said compromise decree on 12.06.1983 after obtaining a certified copy thereof, this suit has been filed claiming title and for setting aside the said decree.

The present opposite-parties as the defendants contested the suit by filing 6 separate written statements denying all the allegations made in the plaint. The defendant Nos.2 & 3 (now deceased and substituted by the legal heirs) by filing a written statement contended that the suit is bad for defect of parties barred by limitation and cause of action for filing the suit was absolutely false. The defendant No.14 (Title Suit No.212 of 1975 was the original owner of the land measuring 32 decimals who settled the said land to the defendant Nos.2 & 3 in the year of 1356 B.S. The defendant Nos. 7 & 8 were owners of 45 decimals of land, who also transferred the said land to the defendant Nos.2 & 3 and also the defendant No.1 in the above manner the defendant Nos.2 & 3 became owners but the S.A. khatians were recorded in wrong name, thus they filed the Title Suit No.212 of 1975. The

concerned and relevant defendants in the said suit who in course of the trial of the said suit entered into a compromise agreement on 26.05.1975 and the suit was decreed in the above manner and the defendant Nos.1-2 mutated their names on 26.08.1975 including the 3 decimals of land now claimed falsely in the present suit.

The defendant Nos.15 & 16 (at present opposite-party Nos.30 & 13) contested the suit by filing a written statement contending that the land measuring 40 decimals in Plot Nos.397 & 358, S.A. Khatian Nos.187 & 188 was purchased from one Nikonjo Behari by the sale deed dated 04.08.1983 and 38 decimals of land and 78 decimals of lands were transferred in favour of the defendant Nos.30 & 31 (the present opposite-parties) by 2 separate sale deeds.

The defendant No.17 the present opposite-party No.32 also filed a written statement contending that the land measuring 1.10¼ acres was wrongly enlisted in vested property through the V.P Case No.102 of 1979. The defendant claimed that Keshob Chandra filed an application for release of the property from the V.P list to the ADC (Rev), Jhalakati and the matter has been pending. Krishna Kanta Halder transferred the said measurement of land to the defendant No.17 by the sale deed dated 04.05.1985.

The defendant Nos. 25, 27-29 became owners of land measuring 17 decimals, 27 decimals, 19 decimals and 23 decimals respectively by the deeds dated 06.03.1982, 22.02.1979, 16.10.1980 and 29.04.1981. The

defendant No.30 filed a written statement contending that Nityananda Halder (the father of the plaintiffs) transferred 04 decimals of land from Khatian Nos.38, 06 decimals of land from khatian No.725, 03 decimals of land khatian No.726 and 07 decimals of land from khatian No.725 and .01½ decimals of land from khatian 728 to the present defendant No.30 who is the present opposite-party No.45, by the sale deed dated 17.02.1977. One Krishna Kanto earlier had obtained a settled in the year of 1356 B.S, and the land was mutated in his name. Thus the Title Suit No.212 of 1975 was filed against the concerned defendants and both the parties entered into a compromise agreement regarding the total land measuring 2.24 acres and subsequently the defendant 30 became owner by the aforementioned deed dated 17.02.1977, wherein the said Nityananda (the father of the plaintiffs) acted as a mediator and signed as a witness in the said deed.

The defendant Nos.33-40 also filed a written statements contending that the land measuring 26 decimals situated in S.A khatian No.3917 Nityananda Dhupi and Hemonto Kumar were owners, but after death of Nityananda his heirs remaining by inheritance. Hemonto died leaving behind 4 sons who are the defendant Nos.34, 36, 37 and one Atul Chandra who died leaving behind 3 sons who are the defendant Nos.38-40. The said sons of Hemonto transferred land to the defendant Nos.33 and 35 by the deed dated 13.10.1975 and they are possessing the suit land.

After hearing the parties and considering the evidence produced by the parties the suit was dismissed by the trial Court by the judgment and decree dated 30.10.1994. Being aggrieved the present petitioners as the appellants preferred the Title Appeal No.239 of 1994 in the Court of the learned District Judge, Jhalakati which was heard by the learned Joint District Judge, 1st Court, Jhalakati, who by his judgment and decree dated 07.04.2005 disallowed the appeal and thereby affirmed the judgment of the trial Court.

Mr. Abdul Awal, the learned Advocate appearing with Mrs. Chowdhury Nasima, the learned Advocate for the petitioners submits that the compromise decree dated 03.06.2017 in the Title Suit No.212 of 1975 was obtained by practicing fraud, because no deposition of the compromising parties were taken by the learned Court, therefore, the compromise decree is not sustainable under law.

The learned Advocate further submits that plaintiffs have acquired 1.99 acres of land for valuable consideration from defendant Nos.4, 9, and 12 by a bainapatra dated 22.04.1970 and took over possession of the land with full knowledge of the defendants and the bainapatra dated 22.04.1970 has been marked as Exhibit-1 and the defendant Nos.4,9, and 12 did not come forward to deny of the bainapatra, therefore, the defendants have no locus-standi to challenge Exhibit-1 but the Court of appeal did not at all consider this vital and legal aspect of the matter and thus committed an

error of law resulting in error in decision occasioning in the failure of justice.

The learned Advocate also submits that the plaintiffs produced P.Ws in order to prove said baina deed dated 20.04.1970 and also possession of the suit land but the Courts below failed to consider the statement of the P.Ws, therefore, came to a wrongful conclusion to the find against the present plaintiff-petitioners, therefore, the Rule should be made absolute.

The Rule has been opposed by the present defendant-opposite-party Nos. 5, 30, 32 and 45.

Mr. Abdul Quayum, the learned Senior Counsel along with Mr. Selim Reza Chowdhury and Mr. Ali Reza, the learned Advocates for the opposite-parties submits that after considering the relevant evidence in form of documents and by way of deposition for the respective parties the learned trial Court dismissed the suit filed by the present petitioners and the appellants filed by the present petitioners was also disallowed by the appellate Court below, as the plaintiff-petitioners failed to prove their case in particular, as to specification of the suit land as required by law and also failed to prove their entitlement, because the ordinary bainapatra dated 20.04.1970 cannot transfer title of the land, as such, the learned Courts below committed no error of law by the concurrent findings, as such, the Rule is liable to be discharged.

The learned Advocate further submits that the Title Suit No.212 of 1975 was filed by Krishna Kanto Halder and others against Ramonimohon Halder and others for a declaration of title that and also the published record of right in R.S. and S.A khatians in the wrong name to be cancelled. In that suit the present plaintiff-petitioners and their predecessors were not made parties but the defendants of the said suit entitled into a compromise agreement on 26.05.1975 to settle the matter out of the Court and the said compromise deed was submitted in the Court and the learned Court decreed the suit on compromise on 03.06.1975. Regarding the land which is measuring 4.27½ acres but the present suit has been filed claiming 3 decimals of land without giving any specification in order to defraud the Court and also to cause suffering of the present defendant-opposite-parties, therefore, the Rule is liable to be discharged.

The learned Advocate also submits that a decree can only be challenged for setting aside by a party of the suit but the present petitioners or their predecessors were not parties to the said suit, therefore, under Order 23 Rule 3 of the Code of Civil Procedure the present petitioner's suit is not maintainable in the eye of law.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under section 115(1) of the Code of Civil Procedure along with annexures therein, in particular, the impugned judgments passed by

the appellate Courts below and also perusing the huge volume of L.C.R, it appears to me that the suit was filed by the present petitioners as the plaintiffs for declaration that the compromise decree in the Title Suit No.212 of 1975 be set aside and also claiming the title upon the suit land measuring 3 decimals. In support of the plaintiffs case Exhibits-1-8 and also produced 5 witnesses as P.Ws. The present opposite-parties as the defendant submitted Exhibits-‘Ka-Ga’ and also produced D.Ws to controvert the case of the plaintiffs.

From the above given facts it transpires to me that the suit has been filed challenging validity of the compromise decree passed in Title Suit No.212 of 1975. In the present suit the plaintiffs claimed entitlement upon the land measuring 3 decimals on the basis of the bainapatra deed dated 22.04.1970 from Chandra Kanto Somaddar and others. I have carefully examined the said documents which has been executed between the parties in order to sell the property and this was simply a Baina and it was not finally completed by the executant of the deed by executing a registered sale deed which can only transfer entitlement of land under the provisions of the existing law. The parties claimed entitlement through the said bainapatra, but this instrument cannot transfer any entitlement. Moreover, thus document contains as many as 16 schedules of lands without specifying which schedule for 3 decimals of land is situated, therefore, in

my opinion this document does not contains any specific description of land claimed by the present petitioners through filing this suit.

In view of the above, I consider that the plaintiff-petitioners claimed entitlement and possession have not been supported by the P.Ws in order to substantiate their case. It appears from Exhibit-8 series that the petitioners have paid khajna on the basis of the record of right but as the plaintiff-petitioners failed to prove their entitlement the payment khajna cannot be a simple proof for possession upon the land.

Now the question is to whether the Title Suit No.212 of 1975 was properly decreed on compromise. It appears from the above discussions that the plaintiff-petitioners failed to prove their entitlement and also the matter of facts that the predecessors of the present plaintiff-petitioners Nityananda Halder or present petitioners were parties in the said suit. However, the instant suit being Title Suit No.58 of 1994 has been filed to set aside the decree passed on 03.06.1975, which is after more than nearly 20 years. The present-petitioners has no locus-standi to challenges a decree as a 3rd party, because, it is a settled principle of law that any person wants to challenge a decree passed expartee, the provision of Order 9 Rule 13 of the Code of Civil Procedure could be applicable. Furthermore, if a decree is passed on compromise the compromise party's cannot challenge a decree under the provision of section 96 (3) of the Code of Civil Procedure, but the non-compromising party of same suit can avail the provision for appeal

under Order 41 within the stipulated period of time as per the provision of law. In the instant case the present plaintiff-petitioners filed this suit after nearly 20 years of the decree passed on 03.06.1975 which is not permissible under the existing law of the country. The learned Advocate for the petitioners submits that some of the relevant parties were not a party to the compromise deed executed on 26.05.1975. It appears that those non-contesting parties did not take steps challenging the compromising decree.

In view of the above, I am of the opinion that the present petitioners have no right to challenge the compromise decree.

Further matter is to be decided by the Court as to whether the present suit has been filed properly or not. I have examined the plaint of this suit and I am really confused as to the statement in the plaint and also the schedule of the plaint. It appears to me that the plaintiff-petitioners claimed 3 decimals of land out of total 1.99 acres of land but neither the schedule contains any specific description of the suit land measuring 3 decimals, as such, I consider that the suit filed by the present petitioners is not maintainable under the provision of law.

Now I am inclined to consider the judgment and decree passed by the Courts below. The learned trial Court considered all the relevant issues and matters in this case including the baina and compromise decree, but on the basis of the evidence both the documentary and oral by way of deposition in the Court failed to prove their own case. The learned trial

Court, therefore, came to a lawful conclusion to dismiss the suit on the basis of the following findings :-

“ তাহাছাড়া বাদী পক্ষের দাখিলী চুক্তি পত্র পর্যা-লাচনা-স্ত দেখা যায় যে, উক্ত চুক্তিপত্র টা পুরাতন কাগজে নতুন করিয়া লিখিয়া তৈরী করা হইয়াছে মাত্র এবং অত্র চুক্তি পত্রটি ঘষা-মাজা অবস্থায় আ-ছ এবং চুক্তিপত্র মূলে যে, বাদীপক্ষ বি-রাধীয়া সম্পত্তি ভোগদখল করি-ত-ছেন বা সরজমি-ন কার্যকরী হইয়া-ছ তাহা বাদীপক্ষ প্রমাণ করি-ত সম্পূর্ণরূ-প ব্যর্থ হইয়া-ছ। ইহাছাড়া বাদীপক্ষ বি-রাধীয়া সম্পত্তি-ত লীজ মূ-ল ৫১ $\frac{১}{২}$ শতাংশ দাবী করি-লও বাদী পক্ষ মূ-ল যে উক্ত সম্পত্তি-ত ভোগ দখলকার আ-ছেন তাহা আ-দৌ প্রমাণ করি-ত পা-রন নাই। কেননা পি,ডব্লিউ ১ বি-বক চন্দ্র হালদার তাহার জেরায় ব-লন আমি কোনদিন লীজমানি পরি-শোধ করি নাই। পক্ষান্ত-র বাদী পক্ষ বিবাদী প-ক্ষের লীজ-ক প্রকারা-স্ত স্বীকার করিয়া-ছেন। তাহাছাড়া ১৭ নং বিবাদী পক্ষ অতিরিক্ত জেলা প্রশাসক (রাজস্ব), ঝালকাঠী এর অফি-সর রিলিজ ফাইল নং ৭৫/৮৪, মিস কেচ নং ১/৮৩, ভি,পি কেচ নং ১০২/৭৯ এর বিগত ইং ২৩/৩/৮৭ তারি-খর আ-দ-শর সইমহরী নকল দাখিল করিয়া-ছ। যাহা প্রদর্শনী গু-ঙ-১(১) হিসাবে চিহ্নিত হইয়াছে। উক্ত কাগজপত্র হইতে স্পষ্ট ভা-ব প্রতীয়মান হয় যে, বাদী পক্ষ ভি,পি কর্তৃপ-ক্ষের নিকট হই-ত লীজমূ-ল সম্পত্তি-ত ভোগ দখলকার নাই। পক্ষান্ত-র প্রতিদ্বন্দ্বি বিবাদীপক্ষ বি-রাধীয়া সম্পত্তি-ত তাহা-দর স্বত্ব দাবী প্রমাণ করি-ত সক্ষম হইয়া-ছেন। দালিলিক ও মৌখিক সাক্ষ্য দ্বারা। ”

The learned appellate Court below also after considering the relevant evidence concurrently found against the present petitioners and disallowed the appeal on the basis of the following findings :-

“বাদী-আপীলকারী পক্ষ ইং ২২/৪/৭০ তারিখের বায়নাপত্র মূলে ১৯৯ $\frac{৩}{৪}$ শতক জমি তদীয় পিতা নিত্যানন্দ হালদার প্রাপ্ত হয় ম-র্ম দাবী করি-লও প্রতিদ্বন্দিতাকারী বিবাদী পক্ষের বর্ণনাপত্রে উ-ল্লিখিত বিভিন্ন তারি-খর দলি-ল (প্র-২ সিরিজ) উক্ত নিত্যানন্দ হালদার স্বয়ং ইষাদি পরিচিত হিসা-ব স্বাক্ষর করিয়াছেন। সেইক্ষেত্রে বর্ণিত বিবাদী পক্ষের অনুকূলে বর্ণিত দলিল সমূহ

বাদীপক্ষ চ্যা-লঞ্জ না করায় উক্ত দলিল সমূহর বহু পূর্বই বাদীপক্ষের দাবীকৃত বায়নাপত্র মূলে (প্র-১) সম্পত্তি দাবী করার অসারতা পরিলক্ষিত হয়। তাহাছাড়া, বাদীপক্ষ নালিশী জমি ওয়ারিশ সূত্রে লীজ মূল এবং বায়নাপত্র মূল দাবী করিয়া আবার তখনি বিরুদ্ধ দখল জনিত স্ব-তর দাবী করিয়া স্ব-বি-রাধী দাবী উপস্থাপন করিয়া-ছেন। ত-ব উ-ল্লখ্য যে, বাদী পক্ষ আরজী প্রার্থনা কলা-ম নালিশী জমি-ত বিরুদ্ধ দখল জনিত স্ব-তর দাবী উপস্থাপন ক-রন নাই। বাদী পক্ষ আরজী সং-শোধ-নর মাধ্য-ম পরবর্তীতে মোকদমা চলাকালে বায়নাপত্রের স্বার্থে জমি দাবী করিয়া এবং উক্ত বায়নাপত্র বাদীপক্ষ পরবর্তী সম-য় প্রাপ্ত হইয়া-ছেন ম-র্ম পি-ডব্লিউ-১ এর বক্ত-ব্যর দ্বারা নালিশী জমি-ত বাদী প-ক্ষের স্বত্ব দখল নাই তাহা প্রমা-ণ প-রাক্ষ ভূমিকায় অবতীর্ণ হইয়া-ছেন। বাদীপক্ষ নিত্যানন্দ ধূপী-ক ১৯৫০ স-ন মৃত হিসা-ব প্রমা-ণর জন্য পরবর্তী কালে আরজী সংশোধনের মাধ্যমে এবং মোকদমা দাখি-লর বহু প-র মৃত্যু সার্টিফিকেট আদালতে দাখিল করিলেও বাদী পক্ষের মূল মোকদমা ইং ১৩/৬/১৯৮৩ তারিখে দাখিল হয় এবং অত্র আপীল মোকদমার মেমো পর্যালোচনায় অত্র আপীল মোকদমা ইং ১/১২/৯৪ তারি-খ দলিল হয় ম-র্ম নথি দৃ-ষ্ট পরিলক্ষিত হয়। যাহা পর্যা-লাচনায় উক্ত নিত্যানন্দ কে ১৩ নম্বর বিবাদী তথা ১৩ নম্বর রেসপন্ডেন্ট হিসাবে উল্লেখ করা হইয়াছে। সেক্ষেত্রে ও বাদীর দাবী কৃত ম-ত উক্ত নিত্যানন্দ ধূপী ১৯৫০ সন এ মারা যান বা তাহার নামকর-ন বি-রাধী দেওয়ানী ২১২/৭৫ নং মোকদমার রায় ডিক্রী তথ্যকী উপা-য় হাসিল করা হয় ম-র্ম বাদী আপীলকারী প-ক্ষের দাবী আর ধো-প টি-ক না।”

In view of the above concurrent findings by the Courts below and on the basis of the discussions made above, I am of the opinion that the present petitioners have utterly failed to prove their case on the standard of the balance of the probability which is a civil standard of proving a case under the provision of law. I also consider that the learned trial Court and also the appellate Court below committed no error of law by finding in the

above manner. I am, therefore, not inclined to interfere into the judgment and decree passed by the learned appellate Courts below.

Accordingly, I do not find merit in this Rule.

In the result, the Rule is discharged.

The interim order of direction to maintain status-quo in respect of the possession of the suit land is hereby recalled and vacated.

The office is directed to communicate this judgment and order and also directed to send down the Lower Courts Records at once.